

13.	25CV1736	U.S. BANK NATIONAL ASSOCIATION vs. CLIFFORD
Motion for Summary Judgment / Summary Adjudication		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Plaintiff moves for summary adjudication on the first cause of action for a breach of contract as evidenced by the Cardmember Agreement and billing statements kept by Plaintiff that constitutes the principal record of transactions between Plaintiff and Defendant relative to Defendant's credit card account.

Plaintiff's request for judicial notice is not signed.

Defendant applied to Plaintiff for a credit card account and entered into a written credit card account agreement with Plaintiff for the account number ending in 7252 (the "Account"). See Plaintiff's Separate Statement of Undisputed Material Facts #1 ("SS"). The Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement when the Defendant applied for, received or used the credit card account. In addition, the Cardmember Agreement provides that use of the card constitutes acceptance of the agreement. (SS #2). Defendant agreed to pay Plaintiff for all charges on the Account and Plaintiff paid vendors for the charges made. (SS #2-3). Defendant received billing statements, did not dispute any portion, and failed to make payment on the Account. (SS #4-6). The last payment made was on or around October 15, 2024. (SS #7). Defendant filed an Answer to the Complaint, which consisted of a general denial.

California Code of Civil Procedure §437c:

(p) For purposes of motions for summary judgment and summary adjudication:

(1) A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

Plaintiff has established the elements of a claim for breach of contract. Defendant does not oppose the Motion and has not raised any defenses. The Court intends to grant Plaintiff's Motion; however, appearances are required since Plaintiff failed to provide Defendant notice of the tentative ruling system.

May 8, 2026
Dept. 9
Tentative Rulings

TENTATIVE RULING #13: APPEARANCES ARE REQUIRED, PURSUANT TO PLAINTIFF'S FAILURE TO COMPLY WITH LOCAL RULES.